

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE**
Office of City Clerk

February 14, 2011

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Ms. Ash, Mr. Brown, Ms. Broyles, Mr. Collins, Dr. Rinne, Mr. Spiker and Mr. Valdez. Absent: Mr. Pierson. Also present: Carol Intlekofer, City Clerk; Barb Dorr, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Presentation of Wyoming Engineering Society Presidential Project Award for 2010, Grand Prize - Engineering Category, to the City of Cheyenne for the Norris Viaduct Project. Nathan Beauheim, Assistant City Engineer, advised the City was honored with the grand prize in the Engineering category at the recent annual convention of the Wyoming Engineering Society. He presented the plaque that had been received to Mayor Kaysen, on behalf of the governing body, and thanked those businesses, agencies and staff who assisted with the project. Mayor Kaysen advised this was the largest public works project the City has ever undertaken, and expressed appreciation to the Engineering Society for recognition of the project and to everyone involved.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. Collins, and pursuant to support received by Ms. Ash and Dr. Rinne, agenda items #14 and 20(c) were removed from the Consent Agenda. Mr. Collins moved to approve remaining Consent Agenda items, seconded by Mr. Brown. Motion carried. Voting "yes" – all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on January 24, 2011. Motion (per Consent Agenda) carried.

Mr. Brown moved to approve payment of vouchers as presented, seconded by Mr. Spiker. Mr. Valdez declared a conflict of interest (business interest) due to a voucher payable to KYOY FM Radio, and vacated Council Chambers. Motion carried. Voting "yes" – all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Valdez returned to Council Chambers.

Mayor Kaysen opened a Public Hearing to receive public comments for a transfer of ownership for a retail liquor license application filed with the City Clerk's Office for CJM Hospitality, LLC d/b/a Hitching Post Inn, 1600 West Lincolnway, Cheyenne, Wyoming. (License currently held by Mantiff Cheyenne Hospitality, LLC d/b/a Ramada Inn Hitching Post Inn, 1600 West Lincolnway, Cheyenne, Wyoming.) City Attorney Dan White advised the Wyoming Liquor Division has notified the City that the current holder of the liquor license

(Mantiff Cheyenne Hospitality, LLC) was placed under a state sales tax hold effective June 30, 2009, and that the hold was still in effect. He stated State Statute requirements prevent transfer of ownership of a liquor license that is under a sales tax hold. Upon inquiry, Mr. White provided information on the status of the time frame for demolition of debris from the fire last fall at the Hitching Post property, and explained the City received a request last week from the property owner (CJM Hospitality, LLC) and, subsequently, also from the owner's insurance company, to extend the demolition deadline of March 20, 2011 for an additional 60 days. He noted the insurance company indicated it is still investigating underlying circumstances connected with the fire, and its obligations under the insurance policy. Mr. White advised the request is currently being considered with continuing discussions being held, and commented that if the extension is approved the City will, hopefully, obtain a commitment from them that all non-structural debris located inside the fence would be removed by the March 20th deadline; that the extension time frame would only extend to remaining portions of the structure. He stated the City has been assured, both by CJM and the insurance company, that no further extensions would be granted. Concern was expressed that timely clean up of the area should be achieved as the site is located along one of the gateways into the City. There being no further comments and purpose of the hearing having been met, Mayor Kaysen closed the hearing.

“An Ordinance amending Section 9.16.100 (B), Open House Assembly, of Chapter 9.16, Offenses By or Against Minors, of Title 9, Public Peace and Welfare, of the Code of the City of Cheyenne, Wyoming, pertaining to the definition of ‘Adult’.” Speaking in support of the ordinance were: Matthew Bowen, who explained his reasons for support included empowering 18-20 year olds to be responsible and to understand the consequences of breaking the law; Debbie Taylor, spokesperson and volunteer victims advocate affiliated with the Wyoming Chapter of Mothers Against Drunk Driving (MADD) organization, who discussed strengthening penalties for minor in possession violations, parental perception, and sending a clear message to youth that underage drinking is not acceptable, and Lisa Scholz, Cheyenne Police Dept., manager of a Core Prevention Grant that the Department has received that involves a “Parents Who Host Lose the Most” campaign, provided statistical information affiliated with underage drinking and reviewed addiction factors involving youth drinking. During comments, Cheyenne Police Chief Brian Kozak reviewed Police Department statistics from recent years involving underage drinking, officer time and resources involving response, safety and control measures, and stated the proposed ordinance would hold 18-20 year olds accountable if they were involved in hosting a drinking party. He advised a violation of the proposed ordinance would be a criminal offense and would require the cited individual(s) to appear in Municipal Court. He provided brief information on a community educational program, through grant funding, the Police Department will be offering in the near future called “Parents Who Host Lose the Most”, and noted the Department is also working with the local military base on underage drinking issues. Reporting for Public Services Committee, Mr. Collins stated there was no recommendation on the item from Committee. Mr. Collins moved to approve on second reading, seconded by Ms. Broyles. Discussion included the following topics: Information on underage drinking and teen hosting of parties involving alcohol; public education; parental providers of alcohol to youth; methods being utilized by youth to acquire alcohol; whether the proposed ordinance will make a difference; past ordinances approved to assist with training of alcohol servers in businesses licensed to serve alcohol, and keg registration control; inconsistency relative to 18 year olds being able to serve alcohol in restaurant liquor licensed

establishments, and current penalties for underage drinking. Ms. Broyles moved to amend by substitute, seconded by Mr. Spiker. It was noted the purpose of the substitute is to change the general penalty provision in Section 9.16.100 (E) by striking the current language and inserting the following: "Each violation of this section shall be punished in accordance with the general penalty provisions of City Code as determined by the Municipal Court. Each person cited for a violation of this section shall appear in Municipal Court." Comment was made that a MIP (minor in possession) offense should also be a must appear (in court) offense. Motion to amend carried. Voting "yes" – all members of the governing body present. Further discussion followed and included comments on research involving strategies that limit access of alcohol to underage individuals; whether harsher punishments will reduce underage alcohol usage; allocating funds for more after school programs; teenage vs. adult brain development and youth comprehension of consequences of a violation; limited resources for evening youth activities; helping youth to become responsible citizens; and an ordinance providing a deterrent to youth relative to hosting parties involving alcohol. Main motion as amended by substitute carried. Voting "yes" – all members of the governing body present with the exception of Ms. Ash and Mr. Collins voting "no". [City Clerk's note: Due to passage of the amendment, the revised entitlement of the Ordinance is as follows: "An Ordinance amending Section 9.16.100 (B), Open House Assembly, of Chapter 9.16, Offenses By or Against Minors, of Title 9, Public Peace and Welfare, of the Code of the City of Cheyenne, Wyoming, pertaining to the definition of 'Adult', and providing a penalty for violations."]

"An Ordinance amending Section 5.12.060, Sales and Consumption--Restrictions, of Chapter 5.12, Alcoholic Beverages, of Title 5, Business Licenses and Regulations, of the Code of the City of Cheyenne, Wyoming, to authorize the issuance of a Malt Beverage Permit or Catering Permit limited to malt beverages, with open container waiver, in conjunction with adult softball/baseball games and tournaments at the Pioneer Park Baseball Complex" -- referred to Finance Committee (sponsor - Ms. Ash).

"An Ordinance amending Ordinance No. 3419, which established a new compensation schedule for members of the City Council of the City of Cheyenne, to clarify the manner in which compensation is to be computed, and providing for an effective date" -- referred to Finance Committee (sponsor - Mr. Pierson).

"An Ordinance repealing in its entirety, Chapter 8.44, Solid Waste, and creating a new Chapter 8.44, Solid Waste, of Title 8, Health and Safety, of the Code of the City of Cheyenne, Wyoming" -- referred to Finance Committee (sponsor - Mr. Brown).

[CA] "A Resolution re-appropriating the Fiscal Year 2011 budget of the City of Cheyenne according to the provisions of W.S. 16-4-112 & 16-4-113." Motion (per Consent Agenda) carried. (#5258)

"A Resolution authorizing a street name change from Logan Avenue to Campbell Avenue for the portion of the street originally platted in Kelley's Addition as Fairview Avenue and later known as Logan Avenue, located between East 9th Street and East 10th Street, located in Kelley's Addition to the City of Cheyenne, Laramie County, Wyoming." Mr. Collins moved to adopt, seconded by Mr. Valdez. Mr. Collins moved to postpone for two weeks (to Feb. 28,

2011) to provide notification to affected property owners, seconded by Dr. Rinne. Motion to postpone carried. Voting “yes” -- all members of the governing body present.

[CA] “A Resolution whereby the Governing Body of the City of Cheyenne authorizes a Special Cheyenne Downtown Development Authority District Election to be held May 10, 2011 as provided by Wyo. Stat. §15-9-217 (b) and (c) which, upon affirmative majority vote of the qualified voters within the district, will authorize a special assessment of ten (10) mills upon real property within the district, excluding real property used exclusively for residential purposes, for a period of four (4) years” -- referred to Finance Committee (sponsors - Mr. Allen and Dr. Rinne).

[CA] “A Resolution authorizing the Mayor and the City Clerk to sign a Final Plat for Goins Elementary School, a replat of Civitan Park and Civitan Place (60' Right-of-Way), Arp Addition, 5th Filing (as vacated); and Block 66, Interior Heights Addition, to the City of Cheyenne; situated in the NW¼ of Section 7, T.13N., R.66W., 6th P.M., Laramie County, Wyoming (located south of and adjacent to Leisher Road, between Dey and Cribbon Avenues)” -- referred to Public Services Committee (sponsor - Mr. Collins).

[CA] “A Resolution authorizing submission of a Mineral Royalty Capital Construction Account Grant (Chapter 3) application to the State Loan and Investment Board on behalf of the Governing Body of the City of Cheyenne to accomplish the Dry Creek Sewer Line Project - Yellowstone Road to Mylar Park” -- referred to Finance Committee (sponsor - Mr. Valdez).

[CA] “A Resolution authorizing submission of a Mineral Royalty Capital Construction Account Grant (Chapter 3) application to the State Loan and Investment Board on behalf of the Governing Body of the City of Cheyenne for the Ridge Road Traffic Signal Replacement Project” -- referred to Finance Committee (sponsor - Mr. Valdez).

[CA] “A Resolution prioritizing the City of Cheyenne’s two applications to the State Loan and Investment Board on behalf of the Governing Body of the City of Cheyenne for Mineral Royalty Capital Construction Account (Chapter 3) Funds” -- referred to Finance Committee (sponsor - Mr. Valdez).

[CA] Agreement between the City of Cheyenne, Transit Division, and Stride Learning Center for Transit Division bus service for Stride clients. Motion (per Consent Agenda) carried. (#5636)

[CA] Volleyball Officiating Agreement between the City of Cheyenne, Recreation Division, and Officials for Fun Club for adult City league volleyball officiating. Motion (per Consent Agenda) carried. (#5637)

Memorandum of Understanding between the City of Cheyenne, Fire and Rescue Department, and Laramie County Community College for the sponsorship of one student per calendar year in the Paramedic Program offered at Laramie County Community College. Reporting for Finance Committee, Mr. Valdez moved to approve, seconded by Mr. Brown. Upon inquiry, Chief Jim Martin, Cheyenne Fire and Rescue Department, provided information

on student program costs and “trade-off” provisions allowing the college to utilize the Department’s training facility, classroom and burn building, and indicated there is no stipulation that after the student completes the program they will work for the City for a specified period of time. Motion carried. Voting “yes” – all members of the governing body present. (#5638)

[CA] Cooperative Agreement between the City of Cheyenne and the State of Wyoming, Department of Environmental Quality, to develop a water quality remediation plan for Lake Minnehaha in Holliday Park (2007-2010 1% Sales Tax). Motion (per Consent Agenda) carried. (#5639)

[CA] Professional Services Agreement between the City of Cheyenne and RRT Design & Construction for design and construction administration of a Construction and Demolition Recycling Material Processing System (State Lands & Investments Board/Solid Waste funds) -- referred to Finance Committee.

[CA] Contract between the City of Cheyenne, Youth Alternatives, and Laramie County Community Partnership, Inc., for enrichment activities for a Wyoming Children’s Trust Fund Grant to provide an outreach program for youth at Carey Junior High School -- referred to Finance Committee.

[CA] Contract between the City of Cheyenne, Youth Alternatives, and Laramie County Community Partnership, Inc., for enrichment activities for a Wyoming Children’s Trust Fund Grant to provide an outreach program for youth at Johnson Junior High School -- referred to Finance Committee.

[CA] Community Based Family Support and Preservation Grant Contract between the City of Cheyenne, Youth Alternatives, and the Wyoming Department of Family Services, Protective Services Division, for counseling services to families involving youths returning from out-of-home placement -- referred to Finance Committee.

[CA] Grant Agreement between the City of Cheyenne and the State of Wyoming, Department of State Parks and Cultural Resources, State Historic Preservation Office, for a Downtown Strategic Action Plan -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and Western Area Power Administration for compensation of actual costs for the City to perform a comprehensive hydrology study of drainage impacts from construction of a new electric sub-station located near McFarland Avenue and Walterscheid Boulevard -- referred to Finance Committee.

Contract Modification No. 1 to Contract No. 5496 between the City of Cheyenne, Engineering Department, and Ayers Associates for additional design services for the East Pershing Boulevard Reconstruction Project (Phase IV) (2003-2006, 2007-2010 1% Sales Tax, Board of Public Utilities, Federal Highway Administration funds). Nathan Beauheim, Assistant City Engineer, advised a substitute modification is being proposed. Mr. Valdez moved to approve in an amount not to exceed \$82,730.00, seconded by Mr. Brown. Mr. Brown moved to amend by substitute which increases the cost by \$16,701.54 for a total modification amount of \$99,431.54, seconded by Mr. Collins. Upon inquiry, Mr. Beauheim explained a portion of the

increased amount requested in the substitute is due to Federal funding requirements that arose resulting in the need to acquire a historical preservation assessment to determine whether the project area involves a historic neighborhood, and discussed the involvement of the State Historic Preservation Board (SHPO). Upon inquiry, Frank Cole, owner of Cole Shopping Center, adjacent property to the project, reviewed historical information of the shopping center property relative to construction of the initial grocery store, which was in the early 1950's. Upon inquiry regarding selection of the subcontractor chosen by Ayers and Associates to conduct the historical preservation assessment, Andy Dana, Ayers and Associates, explained a non-local firm was chosen as they have done some prior project work already under the original contract, and that the firm has experience in providing historical preservation assessments. Concern was expressed regarding a non-local subcontractor, and expenses associated with the project. Motion to amend carried. Voting "yes" – all members of the governing body present. Comments followed regarding the project and the need to closely monitor expenses. Main motion as amended by substitute carried. Voting "yes" – all members of the governing body present with the exception of Mr. Allen voting "no". (#5496)

Consideration of Bid #R-18-11 for furnishing twelve new 2011 Police vehicles from Spradley Barr Motors, Cheyenne, Wyoming, for the Police Department (2007-2010 1% Sales Tax). Mr. Valdez moved to accept the bid in an amount not to exceed \$272,016.00, seconded by Dr. Rinne. Comments followed regarding an upcoming Council work session to discuss use of police vehicles and whether action on the bid should be postponed (to Feb. 28th) until after the work session. Lt. Monti Allsop, Cheyenne Police Department, advised Ford is ending production of the Crown Victoria model this year and the cut-off date to submit a purchase request is March 1st. Upon inquiry, Rudy Apodaca, Purchasing Director, advised it takes one day to issue a purchase order if all of the information can be entered by the Police Dept. staff. Lt. Allsop stated if the order is not placed by the March 1st deadline, there would be additional costs as they would need to go back out to bid for a different vehicle model. He explained the Department has purchased Crown Victoria's since 2004 and the current police vehicle equipment designed for those models could be re-used with the new Crown Victoria's to be ordered; if a different model is acquired, new equipment and accessories would have to be ordered to fit the different model. Motion carried. Voting "yes" – all members of the governing body present.

[CA] Consideration of Bid #R-20-11 for furnishing three new 2011 full size 4x4 one ton pickup trucks for the Parks and Forestry Divisions from Spradley Barr Motors of Cheyenne, Wyoming (2007-2010 1% Sales Tax) -- referred to Finance Committee.

Announcement was made that due to the President's Day Holiday on Monday, Feb. 21, 2011, the following City Council Committee meetings will instead be held on Tuesday, Feb. 22, 2011 in the Municipal Building, 2101 O'Neil Avenue: Finance Committee will meet at 11:00 a.m. and Public Services Committee will meet at 12:00 p.m. (Noon) in Council Meeting Room 122.

Announcement was made of a Public Hearing to be held February 28, 2011 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, for renewal of existing City liquor licenses (retail, restaurant, limited retail, resort, bar and grill licenses, microbrewery and winery permits) filed with the City Clerk's Office.

Appointment of Katherine Palmer, Carol Wurdemann, Ted Gertsch and Leland G. Clabots to the Housing and Community Development Advisory Council; Ray Fertig, Jr. to the Building Code Board of Appeals; Keith C. Eldred to the Board of Adjustment, and Robin Zimmer to the Public Transit Advisory Board. Mr. Brown moved to approve, seconded by Dr. Rinne. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mayor Kaysen who did not vote (Mayoral appointment).

Re-appointment of Gene Maione to the Board of Adjustment. Mr. Collins moved to approve, seconded by Mr. Brown. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mayor Kaysen who did not vote (Mayoral appointment).

Under other City Business, Major Dorr advised he was interested in agenda item #10 (Ordinance involving possible malt beverage sales and consumption at Pioneer Park Baseball Complex) and the Council process for speaking on the item. Mayor Kaysen advised public input could be made at the Finance Committee meeting on Feb. 22, 2011 in Room 122 at 11:00 a.m. and again on Feb. 28, 2011 at the City Council meeting.

There being no further business to come before the governing body, Mayor Kaysen adjourned the meeting at 7:31 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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